

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, MAY 14, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, MAY 13, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0091504 ADAMS, MARK v. LACK FAMILY INVESTMENTS

The motion to tax costs is continued to **May 21, 2026, at 8:30 a.m. in Department 3**.

2. M-CV-0093558 WELLS FARGO BANK, N.A. v. BRAWLEY, ROBERT

Plaintiff's Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted

Plaintiff's unopposed motion is granted. (Code Civ. Proc. § 2033.280.) Plaintiff's request for admissions, set one, are deemed admitted.

No sanctions are imposed against defendant because no request for sanctions is stated in the notice of the motion.

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PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

3. M-CV-0096597 SFC PROMENADE PARK v. DORTON, BRIELE

Stay of Execution

Appearances of the parties are required at the hearing.

4. S-CV-0043042 BLANCO, ENEDINA v. LAZZARESCHI, RICHARD

Petition for Approval of Minor's Compromise Claim (Ayanna De La Torre-Herrera)

Petitioner's petition for approval of minor's compromise claim is denied without prejudice. Petitioner requests the court to approve attorney's fees in the amount of 36.5% of minor's gross recovery. Absent extraordinary and compelling circumstances, the court finds that reasonable attorney fees for representation of a minor are no more than one-fourth of minor's gross recovery.

5. S-CV-0049276 BARBOUR, MYKEL v. CREEKSIDE TOWN CENTER

Defendant Professional Security Consultant Motion for Leave to File Cross-Complaint

Defendants seek leave of court to file a cross-complaint. On April 30, 2026, the court continued the matter to allow defendant to file a supplemental declaration that attaches its proposed cross-complaint for the court's consideration. On May 7, 2026, defendant's attorney of record, Cynthia Lawrence, filed a supplemental declaration that attaches defendant's proposed cross complaint.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

The proposed cross-complaint alleges causes of action for (1) Indemnity; (2) Equitable Contribution; and (3) Declaratory Relief—all of which arise from the same transactions as plaintiffs' complaint. The court finds no evidence defendant acted in bad faith. The court further finds there is no risk of substantial prejudice to any party if leave is granted.

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Accordingly, defendants' motion for leave to file a cross-complaint is granted. Defendants shall file and serve the cross-complaint attached to the supplemental declaration of Cynthia Lawrence on or before **May 21, 2026**.

Trial Setting Conference

Appearances of the parties are required. Trial counsel are to personally appear. Remote appearance is not authorized. Trial counsel shall bring their respective trial calendars and schedules.

The parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon trial dates.

6. S-CV-0051706 NERSESYAN, OVSEP v. JUERN, JEREMY S. M.D.

The motion for summary judgment is continued to **May 21, 2026, at 8:30 a.m. in Department 3**.

7. S-CV-0051886 CHURCHMAN, JAMES v. FCA US

Plaintiff's Motion to Substitute Trustee Jeffrey R. Churchman in Place of Deceased Plaintiff, James Churchman

Plaintiff's motion to substitute trustee Jeffrey R. Churchman in place of deceased plaintiff James Churchman is granted. (Code Civ. Proc., §§ 377.30, 377.31, 377.32.) Jeffrey R. Churchman, surviving son and trustee of plaintiff, James Churchman, is hereby substituted in place of plaintiff James Churchman.

8. S-CV-0052434 GALVAN, MARIA v. LAWTON CONSTRUCTION

Plaintiff's Motion for Preliminary Approval of Class Action Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O'Connor v. Uber*

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Technologies, Inc. (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Stipulation of Class Action and PAGA Settlement and Release and plaintiff's moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 1, paragraph 1.8 of the Stipulation of Class Action and PAGA Settlement and Release. The court preliminarily approves the Stipulation of Class Action and PAGA Settlement and Release and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on April 22, 2026.

The final approval hearing is set for **Thursday, October 15, 2026, at 8:30 a.m. in Department 3.**

9. S-CV-0053818 PUGLIESE, JEREMY v. MORENO, FRANQUI

Defendant Franqui Antoinette Moreno's Demurrer to Plaintiffs' First Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Motion

Defendant demurs to plaintiffs' first amended complaint ("FAC") on the grounds res judicata bars the complaint. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes,*

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Inc. v. Liebert (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Res judicata, also known as claim preclusion, applies “when a second suit involves (1) the same cause of action (2) between the same parties [or their privies] (3) after a final judgment on the merits in the first suit.” (*Grande v. Eisenhower Medical Center* (2022) 13 Cal.5th 313, 323.) Determining whether the same causes of action are alleged in both suits requires the court to examine the “primary right at stake: if two actions involve the same injury to the plaintiff and the same wrong by the defendant then the same primary right is at stake even if in the second suit the plaintiff pleads different theories of recovery, seeks different forms of relief and/or adds new facts supporting recovery.” (*Cal Sierra Development, Inc. v. George Reed, Inc.* (2017) 14 Cal.App.5th 663, 675.) A voluntary dismissal with prejudice, otherwise known as a retraxit, is deemed a final judgment on the merits against that plaintiff. (*Alpha Mechanical, Heating & Air Conditioning, Inc. v. Travelers Casualty & Surety Co. of America* (2005) 133 Cal.App.4th 1319, 1330.)

Plaintiffs Jeremy Pugliese and Michele Pugliese’s first amended complaint against Franqui Antoinette Moreno alleges causes of action for motor vehicle and loss of consortium. Plaintiffs also filed a complaint against Franqui Antoinette Moreno in the United States District Court, Eastern District of California that alleges causes of action for motor vehicle and loss of consortium based on the same transaction and occurrences. Plaintiffs then voluntarily dismissed their federal complaint against defendant with prejudice 10 days before filing the pending action.

Here, when taking the factual allegations in the FAC as true, plaintiffs do not allege facts sufficient to state either cause of action because res judicata applies to bar this second suit involving the same causes of action, between the same parties, after a final judgment on the merits in the first action.

Accordingly, defendant’s demurrer is sustained in its entirety without leave to amend.

10. S-CV-0053902 ALVAREZ, LETICIA v. PRECISION FLUID CONTROLS

Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement

Plaintiff’s motion for preliminary approval is continued to **May 28, 2026, at 8:30 a.m. in Department 3**. Plaintiff, or their counsel of record, shall file a supplemental

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

declaration on or before **May 21, 2026**, that clarifies whether the settlement amount is \$415,000 or \$500,000 as both numbers are provided in the moving papers.

11. S-CV-0054070 GIUSTI, EMILY v. FORD MOTOR COMPANY

Plaintiffs' Motion for Attorney's Fees for Time Actually Expended and Reasonably Incurred

Preliminary Matters

Defendants' request for judicial notice is granted.

Ruling on Motion

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because she achieved her litigation objectives. Defendants do not challenge this. Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit A to the declaration of Jorge Acosta, which supports 6.7 hours by Courtney Perdue, 7.8 hours by Christopher Urner, 22 hours by Jorge Acosta, 1.3 hours by Alexandra Sloan, 14.1 hours by Wojciech Kowalczyk, and 1.3 hours by Mary Zazueta.

The court determines 5.3 hours by Courtney Perdue, 6.4 hours by Christopher Urner, 16.3 hours by Jorge Acosta, 1.3 hours by Alexandra Sloan, 14.1 hours by Wojciech Kowalczyk, and 1.3 hours by Mary Zazueta are reasonable.

The court must next address whether the requests for \$695 per hour by Courtney Perdue, \$525 per hour by Christopher Urner, \$450 per hour by Jorge Acosta, \$350 per hour by Alexandra Sloan, \$250 per hour by Wojciech Kowalczyk, and \$250 per hour by Mary Zazueta are reasonable. Determining the reasonable amount of attorneys' fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel and finds the hourly rates of \$400 per hour by Courtney Perdue, \$400 per hour by Christopher Urner, \$350 per hour by Jorge Acosta, \$300 per hour by Alexandra Sloan, \$150 per hour by Wojciech Kowalczyk, and \$150 per hour by Mary Zazueta are reasonable for similar legal services within Placer County.

Accordingly, plaintiffs' motion is granted in the amount of reduced attorneys' fees in the amount of \$13,085 and costs in the amount of \$1,466.23 for a total amount of \$14,551.23.

12. S-CV-0054252 KUDER, ANNETTE v. GENERAL MOTORS

Defendant's Motion for Summary Judgment or, Alternatively, for Summary Adjudication

Preliminary Matters

Plaintiff's objections are overruled in their entirety.

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Ruling on Motion

Defendants move for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the "plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense." (*Ibid.*) Pursuant to the "golden rule" of summary judgments, "if it is not set forth in the separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff alleges two causes of action: (1) Violation of the Federal Magnuson-Moss Warranty Act and (2) Breach of Express Warranty Under the California Commercial Code.

A breach of express warranty under California Commercial Code section 2313 requires plaintiff to establish the following elements:

(1) an express warranty (Com.Code, § 2313) to repair defects given in connection with the sale of goods; (2) the existence of a defect covered by the warranty; (3) the buyer's notice to the seller of such a defect within a reasonable time after its discovery (*id.*, § 2607, subd. (3)(A)); (4) the seller's failure to repair the defect in compliance with the warranty; and (5) resulting damages
(*Orichian v. BMW of North America, LLC* (2014) 226 Cal.App.4th 1322, 1333–34.)

Importantly, a breach of the express warranty claim under the Commercial Code requires privity with the buyer and seller. (*Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1217; *Davis v. Nissan North America, Inc.* (2024) 100

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Cal.App.5th 825, 836–38; *Della Shaker v. Mercedes-Benz USA LLC et al* (C.D. Cal., Apr. 17, 2026, No. 2:25-CV-08732-SVW-MAR) 2026 WL 1182812, at *2.)

Here, defendant meets its burden to show that plaintiff cannot establish the parties were in privity when plaintiff purchased the vehicle. (UMF Nos. 2–8.) Accordingly, the burden shifts to plaintiff to raise a triable issue of material fact.

Plaintiff does not thereafter meet their burden to raise a triable issue of material fact.

The violation of the Federal Magnuson-Moss Warranty Act cause of action thereafter fails as a matter of law because there are no state law claims to attach to. (*Clemens v. DaimlerChrysler Corp.* (9th Cir. 2008) 534 F.3d 1017, 1022.)

Plaintiff’s request for the court to treat the motion for summary judgment as a motion for judgment on the pleadings is denied because defendant is not challenging the sufficiency of the pleadings in its motion for summary judgment. (*Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal.App.5th 480, 493.)

Accordingly, defendant’s motion for summary judgment is granted.

13. S-CV-0054742 SOUZA, EVAN v. EHEALTH INSURANCE SERVICES

Defendant’s Motion to Compel Arbitration and Stay Proceedings

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party’s request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then “bears the burden of proving by a preponderance of the evidence any fact necessary to its defense” including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

In the employment context, as here, the California Supreme Court set forth five minimum requirements for enforcement of an arbitration agreement: (1) provide for a neutral arbitrator; (2) provide for more than minimal discovery; (3) require the arbitrator to issue a written decision; (4) provide for the same remedies that would otherwise be available to the employee in court; and (5) not require the employee to bear costs unique to arbitration. (*Armendariz v. Foundation Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 102–03.)

Defendant meets its initial burden to prove the existence of a valid arbitration agreement between the parties. (Rangarajan, Ex. D.) Moreover, defendant establishes the arbitration agreement meets the *Armendariz* factors.

Plaintiff contends the arbitration agreements is unconscionable. To establish the defense of unconscionability, both procedural and substantive unconscionability must be shown. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) However, courts evaluate unconscionability on a sliding scale whereby a greater showing of procedural unconscionability requires a lesser showing of procedural unconscionability and vice versa. (*Ibid.*)

Courts determine whether an arbitration agreement is procedurally unconscionable first by determining whether the contract is one of adhesion. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) If a contract is one of adhesion, then it contains “some degree of procedural unconscionability and requires [the court] to scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Fisher v. MoneyGram Intern., Inc.* (2021) 66 Cal.App.5th 1084, 1095.)

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Substantive unconscionability, on the other hand, looks at the fairness of a contract's terms. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 129.) Terms of a contract are substantively unconscionable if they "impair the integrity of the bargaining process or otherwise contravene the public interest or public policy or attempt to impermissibly alter fundamental legal duties." (*Id.* at 130 [internal quotation marks omitted].)

First, plaintiff establishes a modicum of procedural unconscionability because the arbitration agreement is one of adhesion as it was a condition precedent to his employment. (*Roman v. Superior Court* (2009) 172 Cal.App.4th 1462, 1470.)

Plaintiff, however, does not meet his burden to establish the arbitration agreement is substantively unconscionable.

Plaintiff also argues defendant waived their right to arbitration. To establish the defense of waiver, plaintiff bears the burden to prove by clear and convincing evidence that defendant knew of the arbitration right and intentionally relinquished or abandoned it. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) "[I]ntentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it." (*Ibid.*) Plaintiff must show it is highly probable the facts that support waiver are true. (*Ibid.*)

Plaintiff does not present clear and convincing evidence that defendant waived their right to arbitration in light of defendant's repeated invocation of its right to arbitration.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant's motion to compel arbitration is granted.

Plaintiff's representative PAGA claims are stayed pending completion of arbitration.

The court schedules this matter for an Order to Show Cause re status of arbitration on **Monday, November 23, 2026, at 3:30 p.m. in Department 40.**

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PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

14. S-CV-0055104 BONDARENKO, IEVGEN v. NELSON, FOREST

Plaintiff/Cross-Defendant's Demurrer to Cross-Complaint or, in the alternative,
Motion for Judgment on the Pleadings

Plaintiff/cross-defendant's demurrer to the cross-complaint or, in the alternative, motion for judgment on the pleadings is dropped from calendar subject to being re-noticed pending resolution of the appeal. The demurrer and/or motion for judgment on the pleadings challenges matters embraced by the appeal that are presently stayed. (Code Civ. Proc., § 916.)

15. S-CV-0055382 MARX, LEROY v. Q&D CONSTRUCTION

Plaintiff's Motion to Substitute Ashley Duskin in Place of Deceased Plaintiff Leroy S. Marx

Plaintiff's motion to substitute Ashley Duskin in place of deceased plaintiff Leroy S. Marx is denied without prejudice because Ashley Duskin's declaration filed in support of the motion does not attach a certified copy of deceased plaintiff Leroy S. Marx death certificate. (Code Civ. Proc., § 377.32, subd. (c).)

16. S-CV-0056466 COMMUNITY PLAYGROUNDS v. TKM9 GROUP US

The demurrer is dropped from calendar in light of plaintiff filing a first amended complaint with the court on April 20, 2026.

The motion to strike is dropped from calendar as no moving papers were filed with the court.

17. S-CV-0056516 MARTIN, ROBERT v. DOE, JOHN

Motion to be Relieved as Counsel

The motion to be relieved as counsel for plaintiff Robert Martin by Erica Chavez and Trauma Law is granted, effective upon the filing of proof of service of the signed order after hearing on the client, Robert Martin. (Code Civ. Proc. § 284, subd. (2); Cal. Rules of Court, rule 3.1362.)

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PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

18. S-CV-0057440 LAKEVIEW LOAN SERV. v. FIRST AM. TITLE INS.

Order to Show Cause re: Preliminary Injunction

On April 6, 2026, the court granted plaintiff's ex parte application for temporary restraining order that granted the following relief

Defendants and their officers, agents, employees, representatives, and all person acting in concert or participating with them, are restrained and enjoined from engaging in, or performing, directly or indirectly, any and all of the following acts: foreclosing or otherwise taking any action to sell the real property, including issuing a Trustee's Deed Upon Sale, commonly known as 5107 Cold Springs Drive, Forest Hill, CA 95631.

The court also set an Order to Show Cause re: Preliminary Injunction for defendants First American Title Insurance Company and Valley First Credit Union to show cause as to why a preliminary injunction against them should not be granted to continue the temporary restraining order for the duration of the action.

Courts must evaluate two interrelated factors to determine whether to issue a preliminary injunction: "(1) the likelihood that the plaintiff will prevail on the merits at trial, and (2) the relative interim harm to the parties from the issuance or nonissuance of the injunction, that is, the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the preliminary injunction is issued." (Code Civ. Proc., § 526, subd. (a)(1)–(3); *SB Liberty, LLC v. Isla Verde Assn., Inc.* (2013) 217 Cal.App.4th 272, 280.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (2d Dist. 1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (2d Dist. 1984) 151 Cal.App.3d 1177.)

The first factor weighs in favor of plaintiff as it appears likely to prevail on the merits of their complaint.

The second factor also weighs in favor of plaintiff because defendants' relative harm is minimal considering the only delay is finalizing the sale that has already occurred.

On the other hand, plaintiff will suffer great harm if the preliminary injunction is not issued because it will lose its priority lien on a unique parcel of property.

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Accordingly, the court grants the preliminary injunction.

The issuing of the preliminary injunction is subject to plaintiff posting of \$5,000 bond with the clerk of the court. (Code Civ. Proc., § 529, subd. (a).) Bond shall be posted by **May 21, 2026**.

19. T-CV-0002604 FLAGG, KEOKI v. WAMPLER, DAVE

This tentative ruling is issued by the **Honorable Trisha J. Hirashima**. If oral argument is requested, it will be heard by the Honorable Trisha J. Hirashima on **Tuesday, May 19, 2026, at 8:30 a.m., in Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

Motion to vacate or set aside execution of writ of possession, August 12, 2025
lockout, and post judgment enforcement

On April 20, 2026, defendant filed a motion to vacate or set aside execution of writ of possession, August 12, 2025 lockout, and post judgment enforcement pursuant to Code of Civil Procedure section 473(d). Defendant previously filed a motion to set aside in June 2025, which was denied by written ruling in August 2025. The sheriff executed the writ of possession on August 12, 2025. Plaintiff opposes the motion.

Code of Civil Procedure section 473 (d) states, “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

The Court of Appeal has outlined the standard for a motion pursuant to Civil Procedure section 473 (d): “[A moving party] could obtain relief under section 473, subdivision (d) only if the [judgment] was void. A judgment is void to the extent it provides relief ‘which a court under no circumstances has any authority to grant.’ (Plaza Hollister Ltd. Partnership v. County of San Benito (1999) 72 Cal.App.4th 1, 20; see Selma Auto Mall II v. Appellate Department (1996) 44 Cal.App.4th 1672, 1683 [‘When a court grants relief which it has no authority to grant, its judgment is to that extent void’].) Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 1004, 1009.

Section 473(d) does not provide relief based on allegations a party did not personally receive, review, or access a ruling before enforcement occurred. Moreover, the court

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.**

previously denied the defendant's prior motion to set aside. Finally, defendant's motion was filed approximately eight months after the sheriff executed the writ on August 12, 2025, and no stay was in effect at the time.

Defendant's motion is accordingly denied. Plaintiff's request, in the opposition, for monetary sanctions and an order that defendant seek leave of court to file any additional motions seeking to relitigate issues of possession, stays, or execution is denied at this time.